Sl. No. 2

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Virtual Hearing)

PRESENT: SHRI RAJEEV BHARDWAJ – MEMBER (JUDICIAL)
: SHRI SANJAY PURI – MEMBER (TECHNICAL)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 19.12.2024 AT 01:00 P.M.

TC/CP. Nos.	Present stage of the case	Section/ Rule	Name of Parties
CP(CAA)/2/230/AMR/2024 connected with CA(CAA)/8/230/AMR/2023	For Orders	230	M/s. Ammaji Estates Pvt Ltd (1st Transferor), M/s.Anumolu Estates Pvt Ltd (2nd Transferor), M/s. Avnash Developers Pvt Ltd (3rd Transferor), M/s Maitri Townships Pvt Ltd (4th Transferor), M/s.Rayudu Estates Pvt Ltd (5th Transferor) with M/s ATR Estates Private Limited(Transferee Company) and Shareholders and Creditors

ORDER

Present: Mr. S S Sarat Chandra, Ld. Counsel for the Petitioners.

Orders pronounced. Accordingly, CP(CAA)/2/230/AMR/2024 is allowed and recorded vide separate sheets.

Sd/-

SANJAY PURI
MEMBER (TECHNICAL)

Sd/-

RAJEEV BHARDWAJ
MEMBER (JUDICIAL)

Mohan & RSN

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH AT MANGALAGIRI
* * *

CP (CAA)/2/230/AMR/2024
Connected with
CA (CAA)/8/230/AMR/2023

IN THE MATTER OF SECTION 230-232 OF THE COMPANIES ACT, 2013

[Under Sections 230 and 232 of the Companies Act,2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

And

In the matter of Scheme of Amalgamation Between M/s. Ammaji Estates Private Limited (1st Transferor Company), M/s.Anumolu Estates Private Limited (2nd Transferor Company), M/s.Avnash Developers Private Limited (3rd Transferor Company), M/s. Maitri Townships Private Limited (4th Transferor Company), M/s. Rayudu Estates Private Limited (5th Transferor Company) and M/s. ATR Estates Private Limited (Transferee Company) and their Respective Shareholders.

In the matter of Scheme of Amalgamation:

1. M/s. Ammaji Estates Private Limited
(CIN: U70102TG2003PTC040286)
11-8-34, Daspalla Hills,
Visakhapatnam-530003,
Andhra Pradesh, India
...1st Petitioner /1st Transferor Company

2. M/s. Anumolu Estates Private Limited
(CIN: U70102AP2003PTC040291)
11-8-34, Daspalla Hills,
Visakhapatnam-530003,
Andhra Pradesh, India
...2nd Petitioner /2nd Transferor Company

3. M/s. Avnash Developers Private Limited
(CIN: U70102TG2003PTC040287)
11-8-34, Daspalla Hills, Visakhapatnam
530003, Andhra Pradesh, India
...3rd Petitioner/3rd Transferor Company

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4. M/s. Maitri Townships Private Limited
(CIN: U70102TG2003PTC040289)
11-8-34, Daspalla Hills, Visakhapatnam
530003, Andhra Pradesh, India
... 4th Petitioner/4th Transferor Company

5. M/s. Rayudu Estates Private Limited
(CIN: U70102TG2003PTC040288)
11-8-34, Daspalla Hills, Visakhapatnam
530003, Andhra Pradesh, India
... 5th Petitioner/5th Transferor Company

WITH

6. M/s. ATR Estates Private Limited
(CIN: U70102TG2003PTC040290)
11-8-34, Daspalla Hills, Visakhapatnam
530003, Andhra Pradesh, India
...6th Petitioner /Transferee Company

Date of Order: 19.12.2024

CORAM

SHRI RAJEEV BHARDWAJ, MEMBER (JUDICIAL)
SHRI SANJAY PURI, MEMBER (TECHNICAL)

For the Petitioners: Mr. S.S.Sarat Chandra, Advocate
For the RD (SER): Mr. Satish Kumar, Assistant Director

ORDER
(Per: Bench)

1. The present joint Company Petition has been filed by Petitioner Companies under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and the National Company Law Tribunal Rules, 2016, seeking approval of the Scheme of Amalgamation with effect from the Appointed Date,

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01.04.2023. The Scheme proposes the amalgamation of the 1st Petitioner/1st Transferor Company, 2nd Petitioner/2nd Transferor Company, 3rd Petitioner/3rd Transferor Company, 4th Petitioner/4th Transferor Company and 5th Petitioner/5th Transferor Company into the 6th Petitioner/Transferee Company and the dissolution of the 1st, 2nd, 3rd, 4th and 5th Transferor Companies without winding up, as provided in the Scheme. A copy of the Scheme of Amalgamation (hereinafter referred to as the "Scheme") has been placed on record.

2. The Transferor Companies and Transferee Company registered offices are situated in the state of Andhra Pradesh and therefore, it is within the jurisdiction of this Tribunal.

3. The Petitioner Companies jointly filed the first motion application bearing CA(CAA)/8/230/AMR/2023 before this Tribunal, seeking dispensation of the meetings of the Shareholders, Secured Creditors, and Unsecured Creditors of all the Transferor and Transferee Companies, as well as exemption from publication of notice in newspapers. The first motion application was disposed of vide order[1] dated 10.01.2024, wherein the meetings of Shareholders, Secured Creditors, and Unsecured Creditors of all the Companies were dispensed with, as detailed in the aforementioned order.

4. Brief facts leading to the filing of the present case are as follows:

   4.1 **M/s Ammaji Estates Private Limited** (1st Petitioner/1st Transferor Company), **M/s Anumolu Estates Private Limited** (2nd Petitioner/2nd Transferor Company), **M/s Avnash Developers Private Limited** (3rd Petitioner/3rd Transferor Company), **M/s Maitri Townships Private**

[1] *Page No. 548 to 560 of the Petition*

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Limited (4th Petitioner/4th Transferor Company) and **M/s. Rayudu Estates Private Limited**(5th Petitioner/5th Transferor Company) were all incorporated as private limited companies under the provisions of the erstwhile Companies Act, 1956, on 13.01.2003.

4.2 The authorized share capital of each Transferor Company is Rs.5,00,000/-, divided into 50,000 equity shares of Rs.10/- each, while the issued, subscribed, and paid-up capital is Rs.1,00,000/-, divided into 10,000 fully paid-up equity shares of Rs.10/- each.

4.3 All the Transferor Companies have the similar objectives, primarily focused on real estate and construction-related activities. These include acting as contractors, builders, developers, and proprietors of various properties such as flats, houses, shops, offices, and agricultural or commercial land. Their activities involve acquiring, leasing, or purchasing land or buildings, preparing building sites, and constructing, renovating, and maintaining diverse structures. Additionally, they engage in hospitality services, operating hotels, restaurants, clubs, and recreational facilities, and provide technical consultancy for engineering, design, and construction projects, including multi-storied complexes, residential and commercial buildings, and shopping centers. Certified true copies of the Memorandum and Articles of Association and Certificate of Incorporation of all the Transferor Companies[2], issued by Registrar of Companies, Vijayawada, are annexed.

4.4 M/s ATR Estates Private Limited, 6th Petitioner/ Transferee Company, was incorporated as a private limited company under the Provisions of

[2] Page No.94 to 199 of the Petition

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the erstwhile Companies Act, 1956 on 13.01.2003. The authorized share capital of the Transferee Company is Rs.5,00,000/-, divided into 50,000 Equity shares of Rs.10/- each, while the issued, subscribed and paid-up capital is Rs.1,00,000/-, dived into 10,000 fully paid-up equity shares of Rs.10/- each. The main objects of the company are to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling house, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centres, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structure whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centres, markets, shopping centres and to act as

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consultants of every type and description for construction of buildings, structures.

5. ***Rationale of the Scheme***[3]:

The Petitioner Companies are closely held private limited companies with entire shareholding held by Anumolu Avinash and his mother Anumolu Ammaji, seek approval for a merger due to their integrated businesses and shared management challenges. The merger aims to streamline operations, improve focus, and address administrative, management, and compliance issues. It will enhance capital adequacy, the debt-to-equity ratio, and net worth, enabling the transferee company to raise funds for expansion. Operational synergies, reduced costs, and simplified compliance processes are expected. The scheme will benefit shareholders and creditors of both companies.

6. The Board of Directors of all the Transferor Companies and Transferee Company in their respective Board Meetings held on 01.07.2023[4] have unanimously approved the Scheme of Amalgamation between the Transferor Companies and Transferee Company with appointed date as 01.04.2023.
7. It is confirmed that no dues or pending returns are outstanding with regard to the Statutory Authorities concerning the Petitioner Companies.

8. It is confirmed that no investigations or proceedings have been initiated or are currently pending in relation to the Petitioner Companies.
9. It is further confirmed that there are no investments under Foreign Direct Investment (FDI), from Non-Resident Indians (NRIs), or from any foreign funds in relation to the Petitioner Companies.

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[3] Page No.49 of the Petition
[4] Page No.364 to 387 of the Petition

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10. As per the section 230 (7) of the Act, the certificate dated 28.10.2023[5] issued by the Statutory Auditors of all the Petitioner Companies Srivalli & Rao, Chartered Accountants, certified that the proposed accounting treatment in the books of the companies as specified in Clause 12 Accounting Treatment is in compliance with the Indian Accounting Standards prescribed under Section 133 of the Act.

11. In the second motion proceedings, this Tribunal, vide its order dated 26.03.2024, directed the issuance of notices to the Statutory Authorities and also ordered paper publications in the Indian Express (English Daily) and Prajashakti (Telugu Daily). These directives were complied with, as evidenced by the filing of a memo of compliance. The memo also states that copies of the notices were served upon: (a) the Regional Director (SER), Hyderabad, MCA by Speed Post; (b) the Registrar of Companies, AP, MCA; and (c) the Income Tax Department.

12. The Regional Director (RD) filed his report under diary no.1472 on 10.10.2024 and raised the following objections, to which the Petitioner Companies have replied as detailed below:

S. No	RD's Observations	Reply of the Petitioner Companies by way of affidavit dated 14.10.2024
1	The Directorate i.e., RD (SER) has received a letter No. ROCV/Amal/230-232/40286, 40291, 40287, 40288, 40289 &40290/296 dated 13.09.2024 from the Registrar of Companies, Andhra Pradesh by pointing out certain observations as under:-	
	(a) To direct the Petitioner Companies to preserve its books of accounts &	The Petitioner Companies have undertaken to permanently

[5] Page No.503 to 526 of the Petition

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		papers & records and not to dispose of without prior permission of the Central Government in terms of Section 239 of the Companies Act, 2013	preserve the books, papers, and records of both the Transferor and Transferee Companies as per Section 239 of the Companies Act, 2013, and not dispose of them without prior Central Government approval.
	(b)	To direct the Petitioner Companies to ensure statutory compliance of all applicable laws and also on sanctioning of the present scheme the Petitioner companies shall not be absolved for any of its statutory liabilities in any manner.	The Petitioner Companies have undertaken to ensure compliance with all applicable statutory requirements. Upon sanctioning the Scheme, the Transferee Company will assume responsibility for all statutory liabilities, including those of the Transferor Companies.
	(c)	To direct the Petitioner Companies, involved in the scheme to comply with Rule 17(2) of Companies (Compromise, Arrangement and Amalgamation) Rules, 2013 with respect to filing of order for confirmation of scheme to be filed in Form No.INC-28 with the concerned office of Registrar of Company by the Petitioner Companies.	The Petitioner Companies undertake to comply with Rule 17(2) of the Companies (Compromise, Arrangement, and Amalgamation) Rules, 2013, by filing the order confirming the scheme in Form INC-28 with the Registrar of Companies, Vijayawada.
2		The Directorate, i.e., RD (SER), has received a letter from the Additional Commissioner of Income Tax, Visakhapatnam, regarding M/s. Maitri Townships Private Limited (Transferor 4). The letter states that an outstanding demand of ₹24,934/- is recoverable as of the current date. Furthermore, upon verification of the latest income tax return filed by the transferor companies for the Assessment Year 2023-24, it has been observed that these companies have claimed carry-forward losses for future years.	The Petitioner Companies confirm that the payment process for the outstanding amount of ₹24,934/- has been initiated and will be completed shortly. Furthermore, it is stated that the Transferee Company's claim for carrying forward the losses of the Transferor Companies to future years is a usual practice. Post-sanctioning of the scheme, the Transferee Company undertakes to ensure compliance with all applicable stipulations.

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3	After examination of the Scheme, the RD (SER) by pointing out certain observations are as under:-	
	(a) As per the Note 4(s) of the Financial Statements of the Petitioner Companies as at 31-03-2023, the Companies have made huge investments in one of the ATR Group Companies. In this regard, the Petitioner Companies may be directed to show the compliance of the provisions of Section 185/186 of the Companies Act, 2013 along with documentary evidence thereof.	The Petitioner Companies have undertaken that they have complied with the requirements of Sections 185/186 of the Companies Act regarding loans, advances, and guarantees. It is further stated that the shareholders of all group companies are the same and collectively own and manage these entities, including the investments made by the Petitioner Companies in one of the group entities.
	(b) It is found that the Transferee Company is also defunct during the last three years and it is also found that all the investments made by the Transferor and Transferee Companies are made in the Group Companies of the promoters. In view of the above and also by considering the huge quantum of reserves & surplus corroborated with investments made by each of the Petitioner Companies, having turnover- NIL (during last 3 years or more), it my have material financial impact (due to negative commercial benefit from investments) upon the National Exchequer, hence opinion/report from Income Tax Authorities may be called for in this regard before considering approval of the Scheme by the Hon'ble Tribunal.	The Transferee Company affirms its commitment to comply with all statutory requirements under the Income Tax Act and other applicable laws, rules, and regulations arising from this merger. It is further assured that the Transferee Company will address any statutory liabilities of the Transferor Company and ensure full compliance post-sanction of the scheme. The Income Tax Department has already reviewed the scheme, provided its opinion, and made observations regarding an outstanding tax amount of ₹24,934. As the department is fully informed about the financial implications of the merger, there is no need to obtain an additional report.

13. In accordance with the aforesaid report, the RD (SER) is satisfied with the response provided by the petitioners. Consequently, the Representative of

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RD(SER) submits that they have no objection to the approval of the contended scheme.

14. The Official Liquidator (OL) made certain observations and the Petitioner Companies has filed reply to the report of the Official Liquidator (OL) which is as follows:

S. No	**Observations of Official Liquidator filed on 09.08.2024 by dairy no.1160**	**Reply of the Petitioner Companies dated 30.07.2024**
1	Clause 1.11of Part-"II" of the Scheme seeks to protect all staff, workmen & employees engaged in the Transferor Companies, ensuring that they shall become the staff, workmen, and employees of the Transferee Company. Therefore, this Hon'ble Tribunal may be pleased to direct the Transferor and Transferee Companies to submit an undertaking to this Hon'ble Tribunal to the effect that there would no retrenchment of any employee who were in service as on the Appointed Date (i.e. 01.04.2023) as well.	The Transferee Company has undertaken that there would be no retrenchment of any employee who were in service as on the appointed date (i.e., 01-04-2023).
2	Clause 1.12 of Part – "II" of the Scheme dealing with 'Record Date', leaving it as undetermined and seeking to vest entire power to fix the Record Date completely with the Board of Directors of Transferee Company alone without the involvement of Transferor Companies and hence, this Hon'ble Tribunal may be pleased to direct the Transferee Company to submit an undertaking to this Hon'ble Tribunal to the effect that the Record Date would be decide and fixed mutually by the Board of Directors of Transferor & Transferee Companies.	The transferor & Transferee Companies undertake that that as per the observations/directions of Hon'ble Official Liquidator for the States of Telangana and Andhra Pradesh, the Board of Directors of Transferor & Transferee Companies have met on 30th August, 2024 and mutually agreed to fix the Record date as 1st day of April 2023. The Board Resolution has also been obtained for supporting the same dated 10.08.2024.

3	Clause 12 of Part-III of the Scheme provides for Accounting Treatment in the books of accounts of the Transferee Company. However, in the said clause, the specific accounting treatment/ method that has to be followed upon the sanction of the scheme is not mentioned. Hence, this Hon'ble Tribunal may be pleased to direct the Transferor and Transferee Companies to specify the accounting treatment/ method that has to follow upon the sanction of the scheme.	The Transferor and Transferee Companies undertake that, as per the observations/directions of the Official Liquidator for the States of Telangana and Andhra Pradesh in Para 22(c), upon the sanctioning of the Scheme by the Hon'ble Company Law Tribunal, the Transferor and Transferee Companies will comply with Accounting Standard-14.

15. The Official Liquidator (OL) after considering the said reply by the Petitioner Company, did not raise any further objections against accepting the Scheme of Amalgamation of the Petitioner Company.

16. We have heard the Learned Counsel appearing for the Petitioners, Assist Director appearing for the RD (SER), and perused the records.

17. We have considered the observations made by the RD and OL and the Reply filed by the Petitioner Companies. We are satisfied with the response given by the Petitioners w.r.t observations made by the RD and OL.

18. Certificates of respective Statutory Auditors of all the petitioner companies, have been placed on record to the effect that Accounting Treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standard notified by the Central Government as specified under the provisions of Section 133 of the Companies Act, 2013 read with Rule 7 of the Companies Accounts Rules, 2014 and Companies (Accounting Standards) Amendment Rules, 2016, and other generally accepted accounting principles in accordance with the Companies Act, 2013, as applicable.

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19. The shareholders of the petitioner companies are the best judges of their interest, fully conversant with market trends, and therefore, their decision should not be interfered with by the Tribunal for the reason that it is not a part of the judicial function to examine entrepreneurial activities and their commercial decisions.

20. The Hon'ble Supreme Court in ***Miheer H. Mafatal v/s. Mafatlal Industries Ltd***[6] while considering the scope of the jurisdiction of the Company Court in respect of matters of sanction of the Scheme of Amalgamation as per the provisions of Section 391 read with Section 393 of the Companies Act, 1956[7], observed as under:

> *"It is commercial wisdom of the parties to the scheme who have taken an informed decision about the usefulness and propriety of the scheme by supporting it by the requisite majority vote that has to be kept in view by the Court. The Court certainly would not act as a court of appeal and sit in judgment over the informed view of the concerned parties to the compromise as the same would be in the realm of corporate and commercial wisdom of the concerned parties. The Court has neither the expertise nor the jurisdiction to delve deep into the commercial wisdom by the creditors and members of the company who have ratified the Scheme by the requisite majority. Consequently, the Company Courts jurisdiction to that extent is peripheral and supervisory and not appellate."*

In view of the law laid down by the Supreme Court, this Tribunal is not supposed to examine the merits/benefits of the commercial wisdom of the decision of the shareholders.

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[6] *Miheer H. Mafatal v/s. Mafatlal Industries Ltd I (Order dated 11.09.1996) [Citation: JT 1996 (8) 205]*

[7] *Section 391 of the Companies Act, 1956: Power to compromise or make arrangements with creditors and members & Section 393 of the Companies Act, 1956: Information as to compromises or arrangements with creditors and members*

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21. It has also been affirmed in the petition that the Scheme is in the interest of all the Transferor companies and the Transferee company, including their shareholders, creditors, employees and all concerned. In view of the foregoing, upon considering the approval accorded by the members and creditors of the Petitioner companies to the proposed Scheme, there appears to be no impediment in sanctioning the present Scheme.

22. On the basis of the above facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, reports of the Regional Director and reply/undertakings of the Petitioner Companies thereon and the documents produced on record, the Scheme of Amalgamation appears to be fair and reasonable and is not contrary to public policy and not in violation of any provisions of law. It appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the Petitioner Companies. We are of the considered view that the proposed Scheme of Demerger is bona fide and in the interest of the shareholders and creditors.

23. In the result, the Company Petition is allowed with the following directions:-

a) Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioners.

b) While approving the Scheme as above, it is further clarified that this order will not be construed as on order granting exemption from

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payment of stamp duty or taxes or any other charges, if payable, as per the relevant provisions of law or from any applicable permissions that may have to be obtained or, even compliances that may have to be made as per the mandate of law.

c) The Scheme of Amalgamation (Copy of the Scheme enclosed at Page No.**388 to 434** of the Petition) is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their respective Shareholders and Creditors, Employees and all concerned under the Scheme.

d) The Scheme shall become effective from the Appointed Date i.e., **01.04.2023** and shall be made operational from the date of filing of the orders with the Registrar of Companies.

e) That the Transferor Companies shall stand dissolved without following the process of winding-up; and

f) All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Investment Undertaking along with all the assets and liabilities of the Transferor Companies shall stand transferred to and vest in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

g) All the liabilities of the Investment Undertaking of the Transferor Companies be transferred, without further act or deed, to the Transferee

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Company and accordingly the same shall pursuant to Sections 230 and 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

h) All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Investment Undertaking of the Transferor Companies, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually against the Transferee Company.

i) All taxes paid or payable by the Investment Undertaking of the Transferor Companies including existing and future incentives, un-availed credits and exemptions, benefit of carried forward losses and other statutory benefits, shall be available to and vest in the Transferee Company.

j) All proceedings now pending by or against the Investment Undertaking of the Transferor Companies, if any, shall be continued by or against the Transferee Company.

k) All employees in the service of the Investment Undertaking of the Transferor Companies shall be deemed to have become the employees and the staff of the Transferee Company on date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on terms and conditions no less favourable than those on which they were/ are engaged, as on the Effective Date.

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l) The Petitioner Companies are directed to preserve their books of accounts and papers and records and not to dispose of without the prior permission of the Central Government in terms of provisions of Section 239 of the Companies Act, 2013.

m) All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

n) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the Registrar of Companies, Andhra Pradesh electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

o) Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Amalgamation ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Amalgamation under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

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p) The Petitioner Companies are directed to issue newspaper publication with respect to approval of Scheme of Amalgamation, in the same newspaper in which previous publications were issued in order to ensure transparency/dissemination of complete information to all concerned parties about the approval granted by the Tribunal for the Scheme as proposed.

q) The Petitioner Companies are further directed to take all consequential and statutory steps required in pursuance of the approved Scheme of Amalgamation under the provisions of the Act.

r) The Petitioner Companies are also directed to strictly comply with all the Undertakings given by them.

s) The Petitioner Companies are directed to strictly adhere to the above directions and applicable provisions of the Companies Act.

t) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

24. Accordingly, the Scheme stands sanctioned and the Company Petition bearing **CP(CAA)/2/230/AMR/2024** connected with **CA(CAA)/8/230/AMR/2023** is allowed and stands disposed of, in terms of the above order.

Sd/-

SANJAY PURI
MEMBER (TECHNICAL)

Sd/-

RAJEEV BHARDWAJ
MEMBER (JUDICIAL)

Swamy Naidu

BEFORE THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL
BENCH AT AMARAVATI & AT MANGALAGIRI
IN THE MATTER OF COMPANIES ACT, 2013 (18 OF 2013)
AND
IN THE MATTER OF SECTIONS 230 TO 232 OF THE COMPANIES ACT, 2013
AND
SCHEME OF AMALGAMATION
(UNDER SECTION 230 AND 232 OF THE COMPANIES ACT, 2013)
BETWEEN
AMMAJI ESTATES PRIVATE LIMITED (TRANSFEROR 1)
AND
ANUMOLU ESTATES PRIVATE LIMITED (TRANSFEROR 2)
AND
AVNASH DEVELOPERS PRIVATE LIMITED (TRANSFEROR 3)
AND
MAITRI TOWNSHIPS PRIVATE LIMITED (TRANSFEROR 4)
AND
RAYUDU ESTATES PRIVATE LIMITED (TRANSFEROR 5)
WITH
ATR ESTATES PRIVATE LIMITED
(TRANSFEREE COMPANY)
AND
THEIR RESPECTIVE SHAREHOLDERS & CREDITORS
CP(CAA)NO /230/AMR/2024 connected with
CA (CAA) NO. 8 /230/AMR/2023

PART – I

PREAMBLE:

This Scheme of Amalgamation is presented pursuant to Section 230/232 read with other applicable provisions of the Companies Act, 2013 as amended from time to time and the Rules made thereunder, for amalgamation of M/s Ammaji Estates Private Limited, M/s Anumolu Estates Private Limited, M/s Avnash Developers Private Limited, M/s Maitri Townships Private Limited and M/s Rayudu Estates Private Limited With M/s. ATR Estates Private Limited. This scheme of amalgamation is between the above companies and their respective members and the scheme does not provide for any compromise or arrangement with any creditor or creditors or class of creditors. Similarly, the scheme does not seek to vary the rights, privileges, terms

conditions and the benefits of the creditors of any class or classification for which they are entitled as on the appointed date or the obligations of the companies towards them.

1. M/s Ammaji Estates Private Limited, the corporate particulars in respect of which are given under part II of this scheme was mainly incorporated to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

AMMAJI ESTATES PVT. LTD. 1 ammaji

ANUMOLU ESTATES PVT. LTD. 2 ammaji

Avinash Developers Pvt. Ltd. 3 ammaji

4 MAITRI TOWNSHIPS PVT. LTD.

5 RAYUDU ESTATES PVT. LTD.

6 ATR ESTATES PVT. LTD.

2. M/s Anumolu Estates Private Limited, the corporate particulars in respect of which are given under part II of this scheme was mainly incorporated to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

3. M/s Avnash Developers Private Limited, the corporate particulars in respect of which are given under part II of this scheme was mainly incorporated to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land

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ANUMOLU ESTATES PVT. LTD.

Avnash Developers Pvt. Ltd. 3

RAYUDU ESTATES PVT. LTD.

ATRI ESTATES PVT. LTD.

and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

4. M/s Maitri Townships Private Limited, the corporate particulars in respect of which are given under part II of this scheme was mainly incorporated to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, [illegible] and

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ANJANEYA ESTATES PVT. LTD.
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MAITRI TOWNSHIPS PVT. LTD.
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RAJ ESTATES (PVT.) LTD.

maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant cafe, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

5. M/s Rayudu Estates Private Limited, the corporate particulars in respect of which are given under part II of this scheme was mainly incorporated to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps,

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Avnash Developers
RAYUDU ESTATES PVT. LTD.
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and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

6. M/s ATR Estates Private Limited, the corporate particulars in respect of which are given under part II of this scheme was incorporated to conduct to carry on all or any of the business of contractors, builders, developers, realtors, proprietors of flats, maisonettes, dwelling houses, shops, offices, agricultural and commercial land and clubs and for these purpose to purchase, take on lease or otherwise acquire and hold any lands or buildings of any tenure or description wherever situate, or rights or interests therein or connected therewith, to prepare building sites and to construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, maisonettes, dwellings houses, shops, offices, clubs, buildings, works, and convenience of all kinds. In addition to the above, subject to the provisions of the law of the state to carry on the business of hotels, restaurant café, beer house, tavern, clubs, sports centers, refreshment rooms and lodge house, Hotels, Holiday camps, and apartment house, and to further carry on the business of technical consultants and advisers for engineering, designing, drawing, estimating, preparing bill of material, bill of costs required for construction of all types of building and structures whether in town planning or otherwise, for the construction of multi storied

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buildings and complexes for residential, office purpose and markets, recreation facilities and all other problems and for that purpose have facilities for preparing drawings, plans, layouts, engineering, structural and otherwise and undertake the construction of buildings and structures and other recreational centers, markets, shopping centers and to act as consultants of every type and description for construction of buildings, structures.

PART - II

1. DEFINITIONS:

In this scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

1.1. **"The Act"** shall mean the Companies Act, 2013 as amended from time to time.

1.2. **"Appointed Date"** shall mean the 1st Day of April, 2023.

1.3. **"Board of Directors"** shall mean collectively and individually the Board of Directors of the Company.

1.4. **"NCLT"** shall mean the Hon'ble National Company Law Board Tribunal, Amaravati Bench.

1.5. **"The effective Date"** for the scheme of amalgamation shall mean the date on which all the approvals for the scheme required are received and certified copies of the orders of the Hon'ble NCLT under Section 230 & 232 of the Companies Act, 2013 of the Transferor Companies and Transferee Company are filed with the Registrar of Companies, Andhra Pradesh at Vijayawada and if the certified copies of the companies are filed on different dates, the last of such filing date.

1.6. **"Scheme"** shall mean this Scheme of Amalgamation between M/s Ammaji Estates Private Limited, M/s Vinjamuri Estates

Private Limited, M/s Avnash Developers Private Limited, M/s Maitri Townships Private Limited and M/s Rayudu Estates Private Limited With M/s. ATR Estates Private Limited and their respective members in its present form or in such modified form as may be sanctioned and approved by the Hon'ble NCLT.

1.7. **"The Transferor Companies"** shall mean:

a) M/s Ammaji Estates Private Limited (hereinafter referred to as the Transferor 1 or "Ammaji Estates" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040286 in the combined State of Andhra Pradesh and now in the State of Andhra Pradesh, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

b) M/s Anumolu Estates Private Limited (hereinafter referred to as the Transferor 2 or "Anumolu Estates" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102AP2003PTC040291 in the combined State of Andhra Pradesh and now in the State of Andhra Pradesh, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

c) M/s Avnash Developers Private Limited (hereinafter referred to as the Transferor 3 or "Avnash Developers" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040287 in

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ANUMOLU ESTATES PVT. LTD. ammaji
Avnash Developers Pvt. Ltd. ammaji
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the combined State of Andhra Pradesh and now in the State of Andhra Pradesh, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

d) M/s Maitri Townships Private Limited (hereinafter referred to as the Transferor 4 or "Maitri Townships" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040289 in the combined State of Andhra Pradesh and now in the State of Andhra Pradesh, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

e) M/s Rayudu Estates Private Limited (hereinafter referred to as the Transferor 5 or "Rayudu Estates" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040288 in the combined State of Andhra Pradesh and now in the State of Andhra Pradesh, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

1.8. **"Tribunal"** shall mean the Hon'ble National Company Law Tribunal, Amaravati Bench having jurisdiction to sanction this scheme.

1.9. **"The Transferee Company"** shall mean M/s ATR Estates Private Limited (hereinafter referred to as Transferee Company or "ATR Estates" for brevity) incorporated under the Provisions of the erstwhile Companies Act, 1956 in the combined State of Andhra Pradesh and now in the State of

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Andhra Pradesh on 13th January, 2003 vide Corporate Identity Number: U70102AP2003PTC040290, with its Registered Office situated at 11-8-34, Daspalla Hills, Visakhapatnam 530003, Andhra Pradesh, India.

1.10. **"Amalgamated Company"** shall mean the merged entity after the merger of the Transferor Companies with the Transferee Company.

1.11. **"The Undertaking of the Transferor Companies"** shall mean all the assets and the properties of the Transferor Companies as on the appointed date including but not limited to movable, immovable, Fixed, actionable, tangible, intangible, stock in trade and inventories (herein after referred to as "the assets")

All the liabilities including but not limited to debts, including trade debts, sundry debts, secured, statutory and un-secured debts, contingent debts, duties and obligations of the Transferor Companies as on the appointed date (herein after referred to as "the liabilities")

All staff, workmen and employees engaged in Transferor Companies shall be the staff, workmen and employees of Transferee Company.

1.12. **"Record Date"** means the date as may be fixed and decided by the board of directors of the Transferee Company for issue and allotment of shares to the shareholders of the Transferor Companies.

1.13. **"Registrar of Companies"** shall mean the Registrar of Companies at Vijayawada for the State of Andhra Pradesh.

1.14. **"Shareholders"** shall mean the person registered (whether registered owner of the shares or beneficial owner of the

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shares) as holders of equity shares of concerned Company as the context may require. The word "Shareholder" and "Member" are used to denote the same meaning and are used interchangeably.

1.15. Reference in the scheme to "Coming into effect the scheme "or "effectiveness of the Scheme" shall mean the effective date.

1.16. Word(s) and expression(s) elsewhere defined in the scheme will have the meaning(s) respectively described.

1.17. The expressions which are used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning hereof, have the same meanings ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be, including any statutory modification or re-enactment thereof from time to time.

PART – III

1. **EFFECTIVE DATE AND OPERATIVE DATE:**

The Scheme though operative from the effective date shall be effective from the appointed date, however, the scheme shall not become operative until all necessary approvals and sanctions are obtained and certified copies of the orders under Section 230 and 232 of the Act duly filed by the Transferee and Transferor Companies with the Registrar of Companies, Andhra Pradesh at Vijayawada. As and when the scheme becoming effective, the same shall be effective from the Appointed Date.

2. **INCORPORATION:**

2.1 M/s ATR Estates Private Limited, the Transferee Company was incorporated in the combined State of Andhra Pradesh

and now having its registered office in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102AP2003PTC040290, issued by the Registrar of Companies, Vijayawada.

2.2 M/s Ammaji Estates Private Limited, the Transferor 1 was incorporated in the combined State of Andhra Pradesh and now having its registered office in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040286. issued by the Registrar of Companies, Hyderabad.

2.3 M/s Anumolu Estates Private Limited, the Transferor 2 was incorporated in the combined State of Andhra Pradesh and now having its registered office in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102AP2003PTC040291, issued by the Registrar of Companies, Vijayawada.

2.4 M/s Avnash Developers Private Limited, the Transferor 3 was incorporated in the combined State of Andhra Pradesh and now having its registered office in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040287, issued by the Registrar of Companies, Hyderabad.

2.5 M/s Maitri Townships Private Limited, the Transferor 4 was incorporated in the combined State of Andhra Pradesh and now having its registered office in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number:

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Avnash Developers Pvt. Ltd.
MAITRI TOWNSHIP PVT. LTD.
RAYUDU ESTATES PVT. LTD.
ATR ESTATES PVT. LTD.

U70102TG2003PTC040289, issued by the Registrar of Companies, Hyderabad.

2.6 M/s Rayudu Estates Private Limited, the Transferor 5 was incorporated in the combined State of Andhra Pradesh and now having its registered officer in the State of Andhra Pradesh under the Provisions of the erstwhile Companies Act, 1956 on 13th January, 2003 vide Corporate Identity Number: U70102TG2003PTC040288, issued by the Registrar of Companies, Hyderabad.

3. CAPITAL STRUCTURE OF THE COMPANIES:

3.1 The present Authorized Share Capital of The Transferee Company viz., "ATR Estates Private Limited" is Rs. 5,00,000/- (Rupees Five Lakhs Only) divided into 50,000 equity shares of Rs, 10/- each. The Issued, Subscribed and paid-up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

3.2 The Authorized Share Capital of "Ammaji Estates Private Limited", the Transferor 1 is Rs. 5,00,000/- (Rupees Five Lakhs Only only) divided into 50,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and paid up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

3.3 The Authorized Share Capital of "Anumolu Estates Private Limited", the Transferor 2 is Rs. 5,00,000/- (Rupees Five Lakhs Only only) divided into 50,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and paid up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

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ATR ESTATES PVT. LTD.

3.4 The Authorized Share Capital of "Avnash Developers Private Limited", the Transferor 3 is Rs. 5,00,000/- (Rupees Five Lakhs Only only) divided into 50,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and paid up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

3.5 The Authorized Share Capital of "Maitri Townships Private Limited", the Transferor 4 is Rs. 5,00,000/- (Rupees Five Lakhs Only only) divided into 50,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and paid up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

3.6 The Authorized Share Capital of "Rayudu Estates Private Limited", the Transferor 5 is Rs. 5,00,000/- (Rupees Five Lakhs Only only) divided into 50,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and paid up capital is Rs.1,00,000/-(Rupees One Lakh only) divided into 10,000 fully paid-up equity shares 10/- each.

3.7 The post-merger Authorized capital of the Transferee Company will be Rs. 30,00,000 /- (Rupee Thirty Lakhs only) divided into 3,00,000 equity shares of Rs.10/- each and the Issued, paid up and subscribed Capital will be Rs.5,45,000/- (Rupees Five Lakh Forty Five Thousand Only) divided into 54,500 equity shares of Rs.10/- each.

4. TRANSFER OF ASSETS AND LIABILITIES / UNDER TAKINGS WITH EFFECT FROM THE APPOINTED DATE:

4.1 The entire undertakings of the Transferor Companies as on the appointed date including fixed assets, movable goods and properties, actionable claims, receivables, current and liquid assets, movable assets, contingent assets, advances, tangible

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and intangible assets, stores, stocks, capital work in progress, Plant and Machinery, tools, accessories, furniture and fixtures and all and every asset of all and every nature and description wherever they are, shall, under the provisions of Section 230 and 232 of the Companies Act, 2013, without further act or deed but subject to necessary compliances if any, be transferred to and vested in the Transferee Company so as to become as and from the said appointed date, the properties, assets, estate, right, title and interest of the Transferee Company.

4.2 The Transfer of properties and assets of the Transferor Companies and vesting of the same in the Transferee company without any further act or deed shall come into effect upon the scheme coming into force.

4.3 In respect of such of the assets, including cash on hand or movable in nature or are otherwise capable of transfer by manual delivery or by endorsement and delivery, the same may be transferred accordingly by the Transferor Companies to the Transferee Company. The amount lying with the Banks to the credit of the Transferor Companies shall also be transferred to the Transferee Company. Such delivery and transfer shall be made on the date to be mutually agreed upon between the respective Board of Directors of the Transferor Companies and Transferee Company upon the orders of the Hon'ble NCLT sanctioning this scheme.

4.4 In respect of movables other than those specified above, including sundry debtors, outstanding loans and advances recoverable in cash or kind or for value to be received and deposits with Government, Semi-Government, Local and other authorities and bodies, the following modus operandi shall be followed:

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(i) The Transferee Company shall give notice in such form as it may deem fit and proper to each party / debtor, that pursuant to the Hon'ble NCLT having sanctioned the amalgamation between the Transferor Companies and the Transferee Company and their members under Sections 230 and 232 of the Act, the said debt, Loan, advance, etc., be paid or made good or held on account of the Transferee Company as the person entitled thereto, to the end and intent that the rights of the Transferor Companies as the case may be, to recover or realize the same stands extinguished and that appropriate entry should be passed in their respective books to record the aforesaid change.

(ii) The Transferor Companies shall also, if so required either by the Transferee Company or the Debtors/Parties, give notice in such form as they may deem fit and proper to each party / debtor that pursuant to the Hon'ble NCLT having sanctioned the amalgamation between the Transferor Companies and the Transferee Company and their members, under Sections 230 and 232 of the Act, the said party should pay the debt or loan or advance or make good the same or hold the same on account of the Transferee Company and the rights of the Transferor Companies shall stands extinguished.

4.5 With effect from the appointed date, all debts, liabilities, duties, obligations of each and every kind, sundry creditors, trade and business liabilities and obligations, secured, un-secured and statutory loans and obligations of every kind, nature and description of the Transferor Companies shall, under the provisions of Sections 230 and 232 of the Act, vest or be deemed to have been vested without any further Act,

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instrument or deed, in the Transferee Company so as to become the debts, liabilities, duties, and obligations of the Transferee Company. It shall not be necessary to obtain the consent of any Third party or other person who is the party to any contract or arrangement by virtue of which, such debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this clause.

Further, in case of any difference in accounting policies between the Companies, the impact of the same till the amalgamation will be quantified and adjusted in the Reserves maintained earlier to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policies.

4.6 The businesses of the Transferor Companies shall stand transferred and vested in the Transferee Company.

4.7 All the Reserves of the Transferor Companies shall be transferred to and negative balances if any, in the reserves of the said Transferor Companies shall be adjusted against the Reserves of the Transferee Company or accounted for in the books of accounts of the Transferee Company as permitted by the accounting standards and accounting policies.

4.8 All the intellectual property rights, patents and brands if any, licenses, registrations, certificates, privileges, of the Transferor Companies shall stand transferred to and vested in the Transferee Company.

4.9 All the mortgages and rights of the secured creditors of the Transferor Companies along with the amounts due to them by the Transferor Companies shall without any further act and deed stand transferred to and vested in the Transferee Company as through the said amounts were borrowed and

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mortgages created by the Transferee Company itself provided, the scheme shall not operate as extension of charge of the secured creditors to other properties which were not mortgaged to them. The Transferee Company, if it is so required by the Secured Creditors, shall execute such further letters or documents and do such acts and deeds as may be necessary and required in the opinion of the secured creditors to protect their interest.

4.10 All the liabilities of the Transferor Companies without limitation together with contingent liabilities, obligations, guarantees shall stand transferred to the Transferee Company.

4.11 This Scheme has been drawn up inter alia to comply with the conditions relating to "amalgamation" as specified under Section 2(1B) of the Income Tax Act, 1961. If any term or provision of the Scheme is found or interpreted to be inconsistent with the said provisions at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said section of the Income Tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with conditions contained in Section 2(1B) of the Income Tax Act, 1961. Such modification shall however not affect other parts of the Scheme.

4.12 Guarantees if any provided by third parties on behalf of the Transferor Companies shall vest in the Transferee Company and shall inure to the benefit of the Transferee Company.

5. LEGAL PROCEEDINGS:

5.1 On and from the appointed date all suits, actions and other legal proceedings (herein after called "the proceedings") by or

against the Transferor Companies and pending on the effective date and relating to the Transferor Companies or the property, Assets, debts, liabilities, duties and obligations referred to in clause 4 above, shall not abate or be discontinued or in any way be prejudicially affected by reason of the transfer of the undertaking of the Transferor Companies or of anything contained in this scheme and the same shall be continued, prosecuted and enforced by or against the Transferee Company as though they are filed by or against the Transferee Company. On and from the effective date, the Transferee Company shall and may initiate any legal proceedings for and on behalf of the Transferor Companies.

5.2 The transfer of the undertakings of the Transferor Companies and the continuance of the proceedings by or against the Transferor Companies pursuant to this scheme, shall not affect any transactions or proceedings already concluded by the Transferor Companies, in the ordinary course of business on or after the appointed Date but before the effective date to the end and intent that the Transferee company accepts and adopts on behalf of itself all acts, deeds and things done lawfully and executed by the Transferor Companies in regard thereto as having been done or executed on behalf of the Transferee Company.

6. CONDUCT OF BUSINESS BY THE TRANSFEROR COMPANIES TILL THE EFFECTIVE DATE WITH EFFECT FROM THE APPOINTED DATE AND UPTO THE EFFECTIVE DATE:

6.1 The Transferor Companies shall carry on and shall be deemed to have carried on all its business and activities and shall stand possessed of and shall be deemed to have held and stood possessed of its properties and assets for and on account of and in trust for the Transferee Company.

6.2 The Transfer and vesting of the property and liabilities and the continuances of the proceedings and the business of the Transferor Companies to the Transferee Company under this Scheme shall not affect any transactions or proceedings already concluded by the Transferor Companies in the ordinary course of business on and after the Appointed date to the end and intent that the Transferee Company accepts on behalf of itself all acts, deeds and things done and executed by the Transferor Companies in respect thereto as done and executed on behalf of itself.

6.3 The profits or incomes accruing or arising to the Transferor Companies or expenditure or losses arising or incurred by the Transferor Companies shall, for all purposes, are treated as the profits or incomes or expenditure or losses as the case may be of the Transferee Company.

6.4 The Transferor Companies shall carry on its business and activities with due business prudence and diligence and shall not, without the prior written consent of the Transferee Company or pursuant to any pre-existing obligation sell, transfer or otherwise alienate, charge, mortgage, or encumber or otherwise deal with the said undertaking or any part thereof or incur or accept or acknowledge any debt, obligation or liability except as is necessary in the ordinary course of its business.

Provided always that the Transferor Companies and the Transferee Company shall have the liberty to take up any new projects, avail any new loans and facility and to create any mortgage or charge on their respective properties, to declare any interim dividend on its Equity shares except that the Transferor Companies shall do so only with the Consent of the Transferee Company provided. However, Transferor

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Companies do not require any consent to carry on the activities in the usual course of business.

6.5 With effect from the effective Date, the Transferee Company shall commence and carry on and shall be authorized to carry on the business carried on by the Transferor Companies.

7. CLUBBING OF AUTHORISED SHARE CAPITAL:

Upon the scheme becoming effective, the Authorized capital of the Transferor Companies will be merged with the Authorized capital of the Transferee Company without any further act or deed or payment of any fee as the Transferor Companies have paid the requisite registration fee on their respective Authorized capital from time to time. Upon the scheme coming in to force, the Authorized capital of the Transferee Company shall be Rs.30,00,000/- (Rupees Thirty Lakhs only) divided into 3,00,000 equity shares of Rs.10/- each and the capital clause in the Memorandum of Association and relevant Regulation if any in the Articles of Association of the Transferee company shall be deemed to have been amended accordingly without any further act or deed however except for any procedural compliances if any and approval given by the members of the Transferee company to this scheme is deemed to be the approval given by them to the increase of the Authorized capital and alteration of the Memorandum of Association and, articles of association if necessary and applicable and the sanction of this scheme by the Hon'ble NCLT shall be deemed to be sufficient compliance by the Transferee Company with the relevant provisions of Companies Act, 2013 with regard to alteration of the capital clause in the Memorandum of Association and articles in the Articles of Association of the Transferee Company read with the Rules made thereunder.

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Avinash Developers Pvt. Ltd.

8. CONSIDERATION FOR THE SCHEME OF AMALGAMATION

8.1 Upon the transfer of the undertakings of the Transferor Companies and the amalgamation becoming effective in terms of this Scheme, the consideration in respect of such transfer shall, subject to the provisions of this Scheme, be settled by the Transferee Company as follows.

8.2 The Transferee Company shall (without further application) issue and allot 1 (One) equity shares of Rs.10/- each credited as fully paid-up for every share held by the members of the 1st Transferor Company i.e., M/s Ammaji Estates Private Limited on such date (herein after called "the Record Date") as the Board of Directors of the Transferee Company will determine. Thus, the Transferee Company shall, in all allot 10,000 (Ten Thousand only) Equity Shares of Rs.10/- to the shareholders of the "M/s Ammaji Estates Private Limited", the **1st Transferor Company** holding 10,000 (Ten Thousand Only) equity shares of Rs.10/- each in the said Transferor Company.

8.3 The Transferee Company shall (without further application) issue and allot 0.9 (Point Nine) equity shares of Rs.10/- each credited as fully paid-up for every share held by the member of the 2nd Transferor Company i.e., M/s Anumolu Estates Private Limited on such date (herein after called "the Record Date") as the Board of Directors of the Transferee Company will determine. Thus, the Transferee Company shall, in all allot 9,000 Shares (Nine Thousand only) Equity Shares of Rs.10/- to the shareholders of the "M/s Anumolu Estates Private Limited", the **2nd Transferor Company** is holding 10,000 (Ten Thousand Only) equity shares of Rs.10/- each in the said Transferor Company.

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ATR ESTATES PVT. LTD.

8.4 The Transferee Company shall (without further application) issue and allot 0.9 (Point Nine) equity shares of Rs.10/- each credited as fully paid-up for every share held by the member of the 3rd Transferor Company i.e., M/s Avnash Developers Private Limited on such date (herein after called "the Record Date") as the Board of Directors of the Transferee Company will determine. Thus, the Transferee Company shall, in all allot 9,000 Shares (Nine Thousand only) Equity Shares of Rs.10/- to the shareholders of the "M/s Avnash Developers Private Limited", the **3rd Transferor Company** is holding 10,000 (Ten Thousand Only) equity shares of Rs.10/- each in the said Transferor Company.

8.5 The Transferee Company shall (without further application) issue and allot 0.95 (Point Nine Five) equity shares of Rs.10/- each credited as fully paid-up for every share held by the member of the 4th Transferor Company i.e., M/s Maitri Townships Private Limited on such date (herein after called "the Record Date") as the Board of Directors of the Transferee Company will determine. Thus, the Transferee Company shall, in all allot 9,500 Shares (Nine Thousand and Five Hundred only) Equity Shares of Rs.10/- to the shareholders of the "M/s Maitri Townships Private Limited", the **4th Transferor Company** is holding 10,000 (Ten Thousand Only) equity shares of Rs.10/- each in the said Transferor Company.

8.6 The Transferee Company shall (without further application) issue and allot 0.7 (Point Seven) equity shares of Rs.10/- each credited as fully paid-up for every share held by the member of the 5th Transferor Company i.e., M/s Rayudu Estates Private Limited on such date (herein after called "the Record Date") as the Board of Directors of the Transferee Company will determine. Thus, the Transferee Company shall, in all allot 7,000 Shares (Seven Thousand only) Equity Shares of

Rs.10/- to the shareholders of the "M/s Rayudu Estates Private Limited", the **5th Transferor Company** is holding 10,000 (Ten Thousand Only) equity shares of Rs.10/- each in the said Transferor Company.

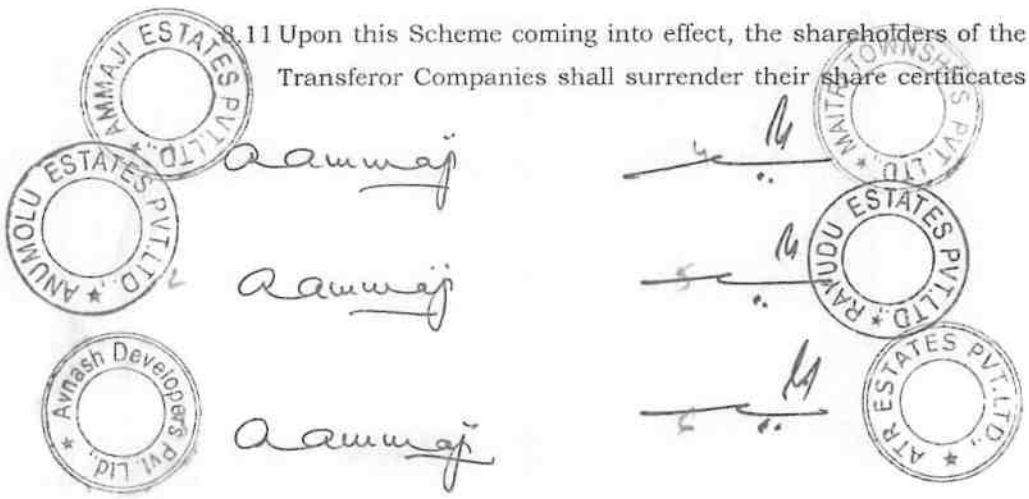
8.7 The Transferee Company or its Board of Directors or its members, for the purpose of issuing the aforesaid shares to the shareholders of the Transferor Companies, shall not be required to pass further resolutions and the sanction of this scheme by the Hon'ble NCLT shall be deemed to be the compliance with the relevant provisions of sections 42, 62 and other applicable provisions of the Companies Act, 2013 read with relevant rules made thereunder.

8.8 The Transferee Company shall on or before the allotment of Equity shares in terms of the scheme, increase its Authorized share capital by creation of at least such number of Equity shares of Rs. 10/- each as may be necessary to satisfy its obligations under the provisions of the Scheme.

8.9 For the purpose of such allotment, fractional entitlements if any, either in shares to be issued by the Transferee Company to the shareholder of the Transferor Companies or in the shares held by shareholders of Transferor Companies merging with the Transferee Company becoming unequal to the share swap (i.e. exchange) ratio fixed for the merger or in both ways, be rounded off to the nearest whole number.

8.10 The shares allotted to the shareholders of the Transferor Companies as aforesaid by the Transferee Company will rank pari-passu with the existing shares of the Transferee Company in all respects.

8.11 Upon this Scheme coming into effect, the shareholders of the Transferor Companies shall surrender their share certificates



for cancellation thereof to the Transferee Company and these share certificates shall accordingly be cancelled in consideration of the shares proposed to be allotted/ allotted to them by the Transferee Company in consideration of this scheme.

9. CANCELLATION OF INTER-CORPORATE / CROSS HOLDINGS AND / OR LOANS

Upon the scheme coming in to force, the cross investments either in share capital or loans or any other form in the companies if not already repaid will be cancelled and the Transferee Company shall square up such transactions and pass appropriate entries in its books of accounts.

10. RATIONALE FOR THE SCHEME

(i) The merged entity will have the better asset base, scope for diversion and creation of new platforms of business and better net worth.

(ii) The objects and business module of the Transferor Companies are similar to that of the objects and business module of the Transferee Company and these are interconnected as such; merger would result in synergy of operations.

(iii) All the companies are closely held private limited companies with their shareholding held by Family members of Avnash Anumolu and his relatives. Because of existing integration and similarity of the business of the Transferee and Transferor Companies, as well as the administrative, management and accounting difficulties in carrying on the business by the management in different entities and the time constraints of the management on account of multiplicity of works and compliances, the management of the companies is

unable to fully focus to the business and achieve optimum business and the merger is therefore considered for consolidation of the business and the companies.

(iv) The Transferor Companies has good clientele and lot of business potential and the Transferee Company is profit making with reasonable free reserves to its credit and capability to raise Loan funds from Banks to support the expansion of the Business thereby exploiting the synergies that are resulted by the Amalgamation. By virtue of these reasons, the merged entity with the combined business and assets of all the companies will have a better net-worth, valuation and will be placed in a much better position to get better financing for expansion to face the competition in the above said industry. Focused attention will improve the business, reduce the risk, avoid duplication, and give chance for better planning.

(v) The combined or merged entity will have better capital adequacy and debt to equity ratio, net worth and asset base.

(vi) Added net worth and assets base will help the Transferee Company to raise funds required for any further expansion of its business or diversion to new fields.

(vii) The merger of the Companies will result in synergy of operations and avoidance of administrative inconveniences and saving establishment cost and compliances of law in addition to reducing the procedural compliances and duplications.

(viii) The merger will enable the undertakings of the Transferee and Transferor companies to supplement each other. The Transferor Companies have as stated above good track record with consistent revenue earning capacity and its profits which

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in turn will benefit the undertakings of all the companies, their employees, shareholders and creditors.

(ix) The proposed Amalgamation would result in consolidation of the businesses of the companies and enable the management to give focused attention to the business.

(x) The proposed scheme is beneficial to the Shareholders and creditors of all the Companies.

11. SHAREHOLDING PATTERN

The Transferee and Transferor companies are closely held private limited companies without there being any public interest involved therein and the entire capital of all the companies are held by their respective Directors and their relatives.

12. ACCOUNTING TREATMENT IN THE BOOKS OF ACCOUNTS OF THE TRANSFEREE COMPANY

i. The Transferee Company shall follow the applicable Accounting Standards and other guidelines prescribed by the Institute of Chartered Accountants of India and the Central Government or jointly as the case may be and account for the amalgamation of the Transferor Companies in its books of accounts and financial statements accordingly.

ii. The Transferee Company shall record all the assets and liabilities of the Transferor Companies transferred to and vested in it, at their book values on line to line basis.

iii. Inter-Company loans or other balances if any, shall if not already liquidated be cancelled and accordingly, the Transferee Company shall record such adjustments upon the cancellations in its books of accounts.

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iv. The difference between the amount of net assets taken over by the Transferee Company over the investments in the Transferor Companies along with any other unrealizable assets of the Transferee Company, whether fixed or intangible or current or any diminution in the value of the investment, if and to the extent these items identified and considered necessary by the Board of Directors of the Transferee Company shall be adjusted against such accounts of the Transferee Company as may deem fit by the Board of Directors. Further, the consolidated accounts of the Transferee Company after amalgamation would reflect the adjustments and procedure followed for the accounting treatment of the amalgamation.

v. On and from the Appointed Date, the reserves and the balance in the Profit and Loss Account of the Transferor Companies will be merged with/adjusted against those of the Transferee Company in the same form as they appear in the financial statements of the Transferor Companies;

vi. In case of any differences in accounting policies between Transferor Companies and Transferee Company, a uniform set of accounting policies will be adopted by the Board of Directors of the Transferee Company following the amalgamation. The effects on therein the Financial statements, any changes in accounting policies shall be adjusted in accordance with Accounting Standard-14 viz., 'Net Profit or Loss for the Period, Prior Period Items and Changes in Accounting Policies' governed by the Companies (Accounting Standards) Rules, 2006

vii. The difference between the amount recorded as consideration i.e., share capital on issue of New Equity Shares allotted by Transferee Company and the existing equity share capital of

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Transferor Companies pursuant to the order of the Hon'ble NCLT shall be recorded as Capital Reserve / Goodwill as the case may be.

viii. Notwithstanding anything above, the Board of Directors of the Transferee Company is authorized to account for all or any of the balances and values of assets and liabilities of the Transferor Companies and apply necessary, applicable and appropriate accounting treatment for recording transfer of the above in its books of accounts in any manner whatsoever, as may be deemed fit, in accordance with the prescribed Accounting Standards notified by National Advisory Committee on Accounting Standards/ Central Government/ ICAI and applicable generally accepted accounting principles and any amendment made thereto as applicable to the accounting of the Transferee company.

13. APPLICATION TO THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL, AMARAVATHI BENCH

The Transferor Companies and the Transferee Company shall take all necessary steps for seeking the sanction of this Scheme by the Hon'ble NCLT pursuant to Section 230 and 232 of the Act for the amalgamation under this Scheme and for the implementation thereof.

14. MODIFICATIONS/AMENDMENTS TO THE SCHEME

The Board of Directors of the Transferor Companies and the Transferee Company through any person(s) duly authorized by them respectively may consent on behalf of all concerned to any modification(s) of or addition(s) to this Scheme or to any condition(s) etc. which the Board of Directors feel necessary to meet with the purpose of scheme or meet with the legal or other requirements or which any Regulatory or Concerned Authority

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which the Hon'ble NCLT may think fit to impose and may do all acts, deeds, matters, and things necessary or usual for carrying this Scheme into effect.

15. SCHEME CONDITIONAL ON APPROVALS /SANCTIONS

This Scheme is conditional upon and subject to:

i. Approval by the requisite majorities of the members, secured creditors and Unsecured Creditors of the Transferor Companies and Transferee Company.

ii. The sanction of the Hon'ble NCLT under Sections 230 and 232 of the said Act in favor of the Transferee Company and Transferor Companies being obtained.

iii. Certified copies of the Orders of the Hon'ble NCLT sanctioning the Scheme being filed with the Registrar of Companies, Andhra Pradesh at Vijayawada by the Transferee Company and the Transferor Companies respectively.

iv. Other requisite sanctions or approval of appropriate authorities as may be considered necessary and appropriate being obtained.

16. SCHEME TAKING EFFECT

a) This Scheme, although shall come into operation from the Appointed Date, shall not however become effective until the date on which the certified copies of the Orders under Sections 230 and 232 of the Act are duly filed with the Registrar of Companies, Andhra Pradesh at Vijayawada.

b) For the purpose of giving effect to the Scheme, the Board of Directors of the Transferee Company or any Committee thereof, is authorized to give such directions as may be necessary or desirable and to settle as they may deem fit, any

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question, doubt or difficulty that may arise in connection with or in the working of the Scheme including with regard to issue and allotment of Equity Shares under Clause 9 hereof, to the members of the Transferor Companies and to do all acts, deeds and things necessary for carrying into effect the Scheme.

c) A copy of the order of the Hon'ble NCLT sanctioning the Scheme of Amalgamation shall be filed by the Transferor Companies and the Transferee Company with the Registrar of Companies, Andhra Pradesh at Vijayawada and Telangana at Hyderabad, within one month from the date the certified copy of Order is received by the Transferor Companies and the Transferee Company or with in such time, the Tribunal directs.

17. EFFECT OF NON-RECEIPT OF APPROVALS/SANCTIONS

In the event of the Scheme failing to take effect for any reason whatsoever, the scheme shall become null and void and in that event, no rights, liabilities shall accrue to or be incurred by the parties or their shareholders, creditors or any other person. In such case, each Company shall bear and pay its respective costs, charges and expenses for and or in connection with the scheme or as may mutually be agreed.

18. NO COMPROMISE WITH THE CREDITORS:

The scheme of Amalgamation does not involve any compromise with creditors of any class of any of the companies. The scheme will not affect the rights of any of the creditors of Transferor Companies or of the Transferee Company including but not limited to secured, unsecured, trade, business, sundry or contingent creditors, in any manner what so ever and all the protections have

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been provided for the interests of creditors of the companies in the scheme.

19. EXPENSES CONNECTED WITH THE SCHEME.

All costs, charges and expenses of the Transferor Companies and the Transferee Company respectively in relation to or in connection with the negotiations leading up to the scheme and of carrying out and implementing / completing the Terms and Provisions of the Scheme and /or incidental to the Completion of amalgamation of the Transferor Companies in pursuance of this Scheme shall be borne and paid by the Transferee Company.

20. DISSOLUTION OF THE TRANSFEROR COMPANIES:

On the Scheme becoming effective and subject to an order being made by the Hon'ble NCLT under Section 232 of the Act, the Transferor Companies shall be dissolved without Winding up and ceased to exist with effect from the effective date or such other date as may be fixed by the Hon'ble NCLT.

21. INTEREST OF THE DIRECTORS IN THE SCHEME

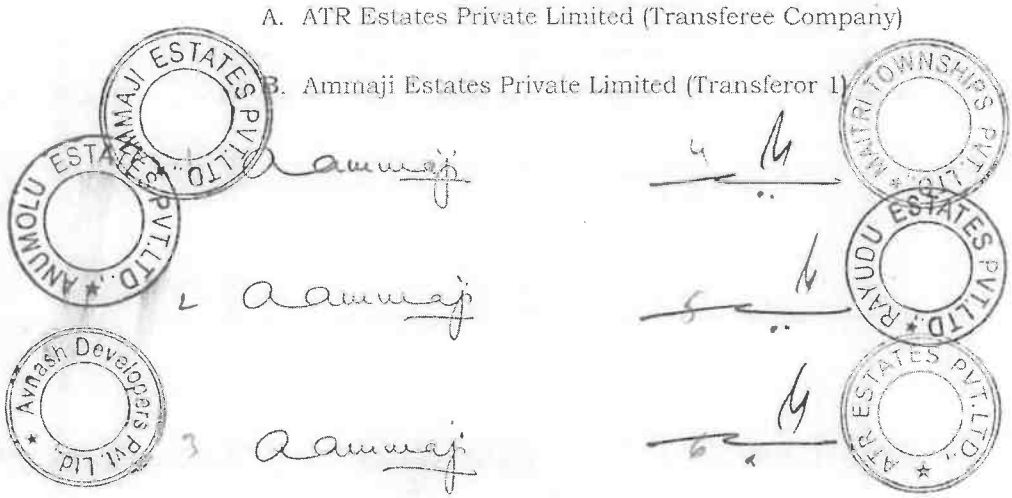
The Directors of the Transferor Companies and Transferee Company are interested to the extent of the shares held by them, their relatives and Associates and the Transferor Companies and Transferee Company being closely held by the promoters, the Directors are generally interested in the companies and their affairs and business.

22. ADDITIONAL DISCLOSURRES

1. Names of the Companies

   A. ATR Estates Private Limited (Transferee Company)

   B. Ammaji Estates Private Limited (Transferor 1)



C. Anumolu Estates Private Limited (Transferor 2)

D. Avnash Developers Private Limited (Transferor 3)

E. Maitri Townships Private Limited (Transferor 4)

F. Rayudu Estates Private Limited (Transferor 5)

2. Corporate Identification Number (CIN) or Global Location Number (GLN) of the companies: - CINs have been furnished under Clauses 1.7 and 1.9

3. Permanent Account Numbers (PAN) of the Companies are as under

A. Transferee Company– ATR Estates Private Limited - PAN: AAECA9149F

B. Transferor Companies – Ammaji Estates Private Limited - PAN: AAECA9147M

C. Transferor Companies – Anumolu Estates Private Limited - PAN: AAECA9148E

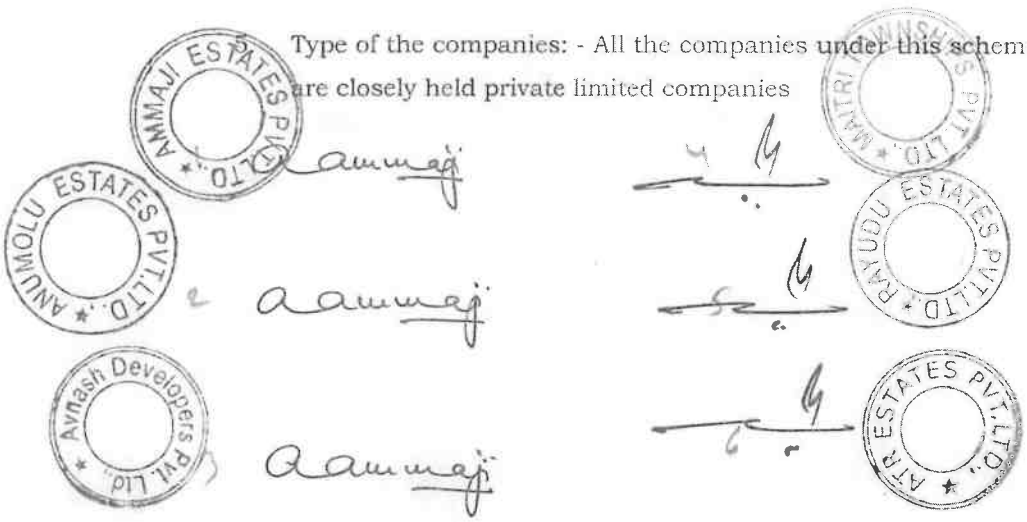
D. Transferor Companies – Avnash Developers Private Limited - PAN: AAECA9150E

E. Transferor Companies – Maitri Townships Private Limited - PAN: AAECM0406H

F. Transferor Companies – Rayudu Estates Private Limited - PAN: AACCR8342M

4. Dates of incorporation: - Furnished under Clauses 1.7 and 1.9 and Clauses 2 mentioned above

Type of the companies: - All the companies under this scheme are closely held private limited companies



6. Registered office addresses and e-mail addresses of the Companies are as under: -

   Registered Office addresses of the Companies are under Clauses 1.7 and 1.9 mentioned above

Email addresses of the companies are as under: -

A. Transferee Company: tirumalavsp@gmail.com

B. Transferor 1 : tirumalavsp@gmail.com

C. Transferor 2 : tirumalavsp@gmail.com

D. Transferor 3 : tirumalavsp@gmail.com

E. Transferor 4 : avnash@hotmail.com

F. Transferor 5 : tirumalavsp@gmail.com

7. Summary of main object as per the memorandum of association; and main business carried on by the companies.

   Summary of the main objects of the companies and the present business being carried by them are furnished under Clauses 1 and 2 of preamble mentioned above.

8. During the last Five Financial years, the Registered offices of neither the Transferee Company nor that of the Transferor Companies was shifted to other address.

9. Name of the stock exchange (s) where securities of the company are listed, if applicable: -

   All the Companies are closely held private limited companies and are not listed on any stock exchange

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ANUMOLU ESTATES PVT. LTD. 2

PRAYUDU ESTATES PVT. LTD.

Avnash Developers Pvt. Ltd. 3

ATR ESTATES PVT. LTD.

10. Details of the capital structure of the company including authorized, issued, subscribed and paid up share capital is as under: -

    Details of Capital Structure of the Companies are under Clauses 3.1 and 3.2 of Part – III mentioned above

11. Names of the promoters and directors along with their addresses are detailed hereunder.

    Transferor 1 was promoted by Sri A.T Rayudu and Avnash Anumolu and its board of directors comprise of the following.

Sl. No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	13.01.2003
2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam– 530003, Andhra Pradesh, India.	00183443	11.03.2015

Transferor 2 was promoted by Sri A.T Rayudu and Sri Avnash Anumolu and its board of directors comprise of the following.

Sl.No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	13.01.2003

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2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam- 530003, Andhra Pradesh, India.	00183443	11.03.2015

Transferor 3 was promoted by Sri A.T Rayudu and Sri Avnash Anumolu and its board of directors comprise of the following.

Sl. No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	13.01.2003
2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam- 530003, Andhra Pradesh, India.	00183443	11.03.2015

Transferor 4 was promoted by Sri A.T Rayudu and Sri Avnash Anumolu and its board of directors comprise of the following.

Sl. No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	08.10.2022
2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam- 530003, Andhra Pradesh, India.	00183443	10.03.2015

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MAITRI TOWNSHIPS PVT. LTD.

ANUMOLU ESTATES PVT. LTD.

RAYUDU ESTATES PVT. LTD.

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ATR ESTATES PVT. LTD.

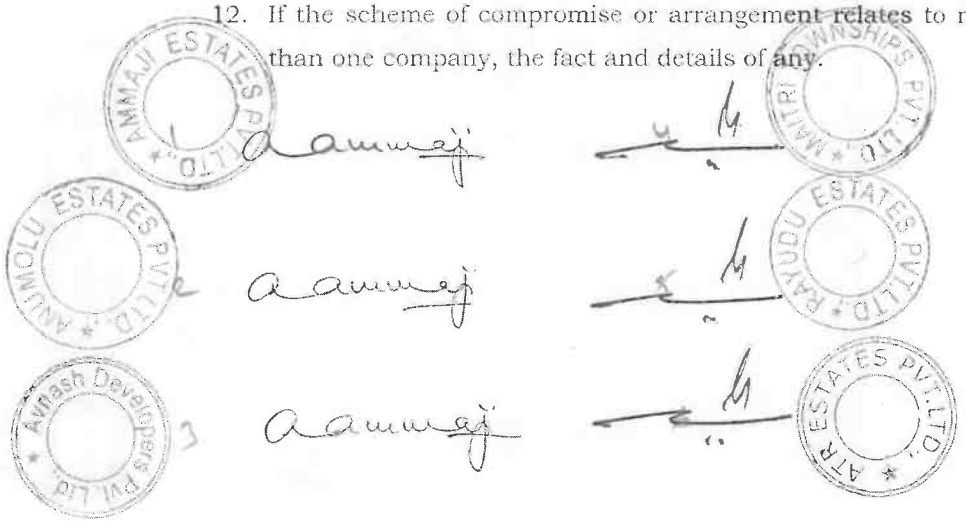
Transferor 5 was promoted by Sri A.T Rayudu and Sri Avnash Anumolu and its board of directors comprise of the following.

Sl. No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	22.04.2022
2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam- 530003, Andhra Pradesh, India.	00183443	10.03.2015

Transferee Company was promoted by Sri A.T Rayudu and Avnash Anumolu and its board of directors comprise of the following.

Sl. No.	Name and address of the Director	DIN	Since when director
1	Sri Avnash Anumolu S/o. Late A.T.Rayudu Door No.11-8-34 Daspalla Hills Visakhapatnam – 530 003 Andhra Pradesh, India	00183375	21.04.2022
2	Smt Ammaji Anumolu W./o Late A.T.Rayudu Door No.11-8-34, Daspalla Hills, Visakhapatnam- 530003, Andhra Pradesh, India.	00183443	10.03.2015

12. If the scheme of compromise or arrangement relates to more than one company, the fact and details of any.



There are six companies and the scheme of amalgamation relate to them. Names of these companies are furnished under preamble and Clauses 2 of Part III above.

13. Relationship subsisting between such companies who are parties to such scheme of compromise or arrangement, including holding, subsidiary or of associate companies: -

All the companies are closely held private limited companies with common shareholders and these represent the shareholding of Sri Avnash Anumolu and his mother Ammaji Anumolu. Irrespective of the above commonality, all the Companies are managed by their respective board of directors at arm's length basis.

14. The date of the board meeting at which the scheme was approved by the board of directors including the names of the directors who voted in favor of the resolution, who voted against the resolution and who did not vote or participate on such resolution.

The scheme was approved by the board of directors of:

a) M/s Ammaji Estates Private Limited at the Board Meeting held on 1st July, 2023 at 10:00 A.M,

b) M/s Anumolu Estates Private Limited at the Board Meeting held on 1st July, 2023, 2023 at 11:00 A.M

c) M/s Avnash Developers Private Limited at the Board Meeting held on 1st July, 2023, 2023 at 12:00 P.M

d) M/s Maitri Townships Private Limited at the Board Meeting held on 1st July, 2023, 2023 at 03:00 P.M

e) M/s Rayudu Estates Private Limited at the Board Meeting held on 1st July, 2023, 2023 at 04:00 P.M

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and M/s ATR Estates Private Limited, at the Board Meeting held on 1st July, 2023, 2023 at 09:00 A.M. respectively. The directors of all the companies attended the meetings of their respective board meetings and approved the scheme unanimously.

15. Parties involved in such compromise or arrangement: -

The companies mentioned above and their respective shareholders are interested in this scheme and therefore, they are only parties to this scheme of amalgamation.

16. In case of amalgamation or merger, appointed date, effective date, share exchange ratio (if applicable) and other considerations, if any;

The scheme is for amalgamation of "M/s Ammaji Estates Private Limited, M/s Anumolu Estates Private Limited, M/s Avnash Developers Private Limited, M/s Maitri Townships Private Limited, M/s Rayudu Estates Private Limited " with "ATR Estates Private Limited" and the appointed date is 01-04-2023. Share exchange ratio was furnished under clause No. 8.2 to 8.6 of part III.

17. Summary of valuation report (if applicable) including basis of valuation and fairness opinion of the registered Valuer, if any, and the declaration that the valuation report is available for inspection at the registered office of the companies: -

The share exchange ratio mentioned clause No. 8.2 to 8.6 of part III is on the basis opinion given by BUKARI BABU MOHAMMED Chartered Accountant M.No:241935 Registered Valuer -Securities and Financial Assets Class in Practice and Registered Valuer having IBBI /RY / 06 / 2023 / 15222 CAIRVO,/06,/RV-P1 19 / 2022-23, and having office at:

AMMAJI ESTATES PVT. LTD.
ANUMOLU ESTATES PVT. LTD.
Avnash Developers Pvt. Ltd.
MAITRI TOWNSHIPS PVT. LTD.
RAYUDU ESTATES PVT. LTD.
ATR ESTATES PVT. LTD.

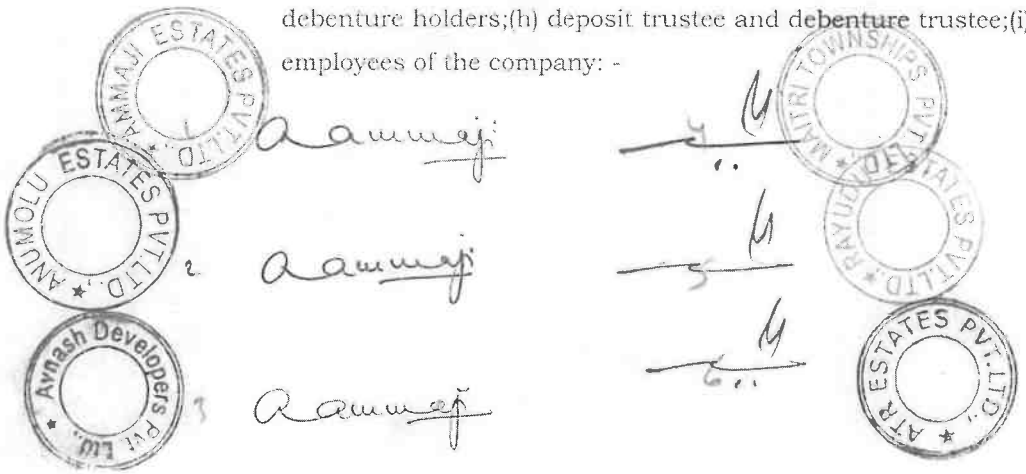
#44-22-52, Ramalayam Street, Rly New Colony Visakhapatnam – 530016, Andhra Pradesh, India and the basis of the valuation of the shares of the companies is the Net Asset Value (NAV) method of valuation for determination of the Fair Value of the Company. The valuation report is available at the Registered Offices of the companies for inspection by the stakeholders under a valid requisition.

18. Details of capital or debt restructuring, if any: - There is no debt or capital restructuring involved in the scheme except issuance of 44,500 shares of Rs.10/- each by Transferee Company to the shareholders of the respective Transferor Companies in lieu of exchange of their shares inconsideration of amalgamation proposed under the Scheme.)

19. Rationale for the compromise or arrangement: - The rationale was furnished under Clause 10 of part III above.

20. Benefits of the compromise or arrangement as perceived by the Board of directors to the company, members, creditors and others (as applicable): - Benefits are forming part of the rationale of the scheme under clause 10 of part III above. The scheme apart from others is beneficial to all the stakeholders as the merger will facilitate consolidation of the business undertakings of all the companies which in turn will result in focused attention by the management, increase in the asset base, creation of more opportunities for growth, expansion and introduction of Investors and service of shareholders and creditors more efficiently.

21. Disclosure about the effect of the compromise or arrangement on (a) key managerial personnel;(b) directors;(c) promoters;(d) non-promoter members;(e) depositors;(f) creditors;(g) debenture holders;(h) deposit trustee and debenture trustee;(i) employees of the company: -



The scheme will not have effect on the key managerial personnel, directors, promoters, non-promoter members, creditors or employees of the companies in any manner what so ever. The companies did not accept deposits or issue debentures and hence, the scheme affecting them will not arise.

22. Disclosure about effect of compromise or arrangement on material interests of directors, Key Managerial Personnel.

The scheme will have no effect on the directors or key managerial personnel. The Directors are interested to the extent of the shareholding held by them and these shareholdings undergo change after the scheme coming to force as they cease to be the shareholders of the Transferor Companies and will become the shareholders of the Transferee Company.

1. **By the order of the Board**
For AMMAJI ESTATES PRIVATE LIMITED

AMMAJI ESTATES PVT LTD

(AMMAJI ANUMOLU)
DIRECTOR
DIN: 00183443

2. **By the order of the Board**
For ANUMOLU ESTATES PRIVATE LIMITED

ANUMOLU ESTATES PVT LTD

(AMMAJI ANUMOLU)
DIRECTOR
DIN: 00183443

3. **By the order of the Board**
For AVNASH DEVELOPERS PRIVATE LIMITED

(AMMAJI ANUMOLU)
DIRECTOR
DIN: 00183443

4. By the order of the Board
For MAITRI TOWNSHIPS PRIVATE LIMITED

(AVNASH ANUMOLU)
DIRECTOR
DIN: 00183375

5. By the order of the Board
For RAYUDU ESTATES PRIVATE LIMITED

(AVNASH ANUMOLU)
DIRECTOR
DIN: 00183375

6. **By the order of the Board**
For ATR ESTATES PRIVATE LIMITED

(AVNASH ANUMOLU)
DIRECTOR
DIN: 00183375

AP/918/2018
Advocate

BEFORE THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL
BENCH AT AMARAVATI & AT MANGALAGIRI
IN THE MATTER OF COMPANIES ACT, 2013 (18 OF 2013)
AND
IN THE MATTER OF SECTIONS 230 TO 232 OF THE COMPANIES ACT, 2013
AND
SCHEME OF **AMALGAMATION**
(UNDER SECTION 230 AND 232 OF THE COMPANIES ACT, 2013)
BETWEEN
AMMAJI ESTATES PRIVATE LIMITED (TRANSFEROR 1)
AND
ANUMOLU ESTATES PRIVATE LIMITED (TRANSFEROR 2)
AND
AVNASH DEVELOPERS PRIVATE LIMITED (TRANSFEROR 3)
AND
MAITRI TOWNSHIPS PRIVATE LIMITED (TRANSFEROR 4)
AND
RAYUDU ESTATES PRIVATE LIMITED (TRANSFEROR 5)
WITH
ATR ESTATES PRIVATE LIMITED
(TRANSFEREE COMPANY)
AND
THEIR RESPECTIVE **SHAREHOLDERS** & CREDITORS

CP (CAA) NO. /230/AMR/2024
connected with
CA (CAA) NO. 8 /230/AMR/2023

LIST OF SECURED AND UNSECURED CREDITORS OF APPLICANT COMPANIES

1. Amount due to directors/unsecured creditors as on the appointed date: - The amounts due to the unsecured creditors is as under:

   A. ATR Estates Private Limited (Transferee Company):

   Dues to Directors to an extent of Rs. 1,95,956 /- which is shown as Unsecured Creditors, wherein the Transferee Company owes Anumolu Avnash an amount of Rs. 1,81,428/- (Rupees One Lakh Eighty One Thousand Four Hundred and Twenty Eight Only) and Anumolu Ammaji an

AMMAJI ESTATES PVT. LTD. ★ ANUMOLU ESTATES PVT. LTD. ★ Avnash Developers Pvt. Ltd. ★ MAITRI TOWNSHIPS PVT. LTD. ★ RAYUDU ESTATES PVT. LTD. ★ ATR ESTATES PVT. LTD.

amount of Rs.14,528/- (Rupees Fourteen Thousand Five Hundred and Twenty Eight Only)

B. Ammaji Estates Private Limited (Transferor 1):

Dues to Directors to an extent of Rs. 1,74,044/- which is shown as Unsecured Creditors, wherein the 1st Transferor Company owes Anumolu Avnash an amount of Rs. 1,55,842/- (Rupees One Lakh Fifty Five Thousand Eight Hundred and Forty Two Only) and Anumolu Ammaji an amount of Rs.18,202/- (Rupees Eighteen Thousand Two Hundred and Two Only)

C. Anumolu Estates Private Limited (Transferor 2)

Dues to Directors / Unsecured Creditors to an extent of Rs 1,93,923/- which is shown as Unsecured Creditors, wherein the 2nd Transferor Company owes Anumolu Avnash an amount of Rs. 1,59,252/- (Rupees One Lakh Fifty Nine Thousand Two Hundred and Fifty Two Only) and Anumolu Ammaji an amount of Rs.18,060/- (Rupees Eighteen Thousand Sixty Only) and Sri. A.T Rayudu (HUF) an amount of Rs. 16,611/- (Rupees Sixteen Thousand Six Hundred and Eleven Only).

D. Avnash Developers Private Limited (Transferor 3)

Dues to Directors / Unsecured Creditors to an extent of Rs 2,82,219 /- which is shown as Unsecured Creditors, wherein the 3rd Transferor Company owes Anumolu Avnash an amount of Rs. 2,58,482/- (Rupees Two Lakh Fifty Eight Thousand Four Hundred and Eighty Two Only) and Anumolu Ammaji an amount of Rs.7,497/- (Rupees Seven Thousand Four Hundred and Ninty Seven Only) and Sri.

AMMAJI ESTATES PVT LTD

ANUMOLU ESTATES PVT LTD

Avnash Developers Pvt. Ltd.

MAITRI TOWNSHIPS PVT LTD

A.T. RAYUDU ESTATES PVT LTD

A.T. ESTATES PVT LTD

A.T Rayudu (HUF) an amount of Rs. 16,240/- (Rupees Sixteen Thousand Two Hundred and Forty Only).

E. Maitri Townships Private Limited (Transferor 4)

Dues to Directors to an extent of Rs 2, 67,192 /- which is shown as Unsecured Creditors, wherein the 4th Transferor Company owes Anumolu Avnash an amount of Rs. 2,59,157/- (Rupees Two Lakh Fifty Nine Thousand One Hundred and Fifty Seven Only) and Anumolu Ammaji an amount of Rs.8,035/- (Rupees Eight Thousand Thirty Five Only)

F. Rayudu Estates Private Limited (Transferor 5)

Dues to Directors to an extent of Rs 1,40,489 /- which is shown as Unsecured Creditors, wherein the 5th Transferor Company owes Anumolu Avnash an amount of Rs. 1,32,700/- (Rupees One Lakh Thirty Two Thousand Seven Hundred Only) and Anumolu Ammaji an amount of Rs.7,789/- (Rupees Seven Thousand Seven Hundred and Eighty Nine Only)

The scheme of Amalgamation is only between the Companies and their respective members. Clause 18 of part III provides that the scheme of amalgamation does not involve any compromise or arrangement with creditors of any class of any of the companies. The scheme will not affect the rights of any of the creditors of Transferor Companies or of the Transferee Company including but not limited to secured, unsecured, trade, business, sundry or contingent creditors, in any manner what so ever and all the protections have been provided for the interests of creditors of the companies in the scheme.

AMMAJI ESTATES PVT. LTD.
ANUMOLU ESTATES PVT. LTD.
Avnash Developers Pvt. Ltd.
MAITRI TOWNSHIPS PVT. LTD.
RAYUDU ESTATES PVT. LTD.
ATR ESTATES PVT. LTD.

The list of unsecured creditors is as follows:-

LIST OF UNSECURED CREDITORS OF ATR ESTATES PRIVATE LIMITED		
S.No.	Particulars	Amount in Rs.
	UNSECURED CREDITORS	
1.	AVNASH ANUMOLU	1,81,428.00
2.	AMMAJI ANUMOLU	14,528.00
	TOTAL	1,95,956.00

LIST OF UNSECURED CREDITORS OF AMMAJI ESTATES PRIVATE LIMITED 1ST TRANSFEROR COMPANY		
	DUES TO DIRECTORS	
1.	AVNASH ANUMOLU)	1,55,842.00
2.	AMMAJI ANUMOLU)	18,202.00
	TOTAL	1,74,044.00

LIST OF UNSECURED CREDITORS OF ANUMOLU ESTATES PRIVATE LIMITED 2ND TRANSFEROR COMPANY		
1.	SRI A.T.RAYUDU (HUF)	16,611.00
2.	AVNASH ANUMOLU	1,59,252.00
3.	AMMAJI ANUMOLU	18,060.00
	TOTAL	1,93,923.00

LIST OF UNSECURED CREDITORS OF AVNASH DEVELOPERS PRIVATE LIMITED 3RD TRANSFEROR COMPANY		
1.	SRI A.T.RAYUDU (HUF)	16,240.00
2.	AVNASH ANUMOLU	2,58,482.00
3.	AMMAJI ANUMOLU	7,497.00
	TOTAL	2,82,219.00

LIST OF UNSECURED CREDITORS OF MAITRI

AMMAJI ESTATES PVT. LTD.

ANUMOLU ESTATES PVT. LTD.

MAITRI TOWNSHIPS PVT. LTD.

ATR ESTATES PVT. LTD.

TOWNSHIPS PRIVATE LIMITED 4TH TRANSFEROR COMPANY		
1.	AVNASH ANUMOLU	2,59,157.00
2.	AMMAJI ANUMOLU	8,035.00
	TOTAL	2,67,192.00

LIST OF UNSECURED CREDITORS OF RAYUDU ESTATES PRIVATE LIMITED 5TH TRANSFEROR COMPANY		
	DUES TO DIRECTORS	
1.	AVNASH ANUMOLU	1,32,700.00
2.	AMMAJI ANUMOLU	7,789.00
	TOTAL	1,40,489.00

AMMAJI ESTATES PVT LTD.

ANUMOLU ESTATES PVT LTD.

Avnash Developers Pvt. Ltd.

MAITRI TOWNSHIPS PVT LTD.

RAYUDU ESTATES PVT LTD.

ATR ESTATES PVT LTD.